

HOUSE No. 3965

The Commonwealth of Massachusetts

PRESENTED BY:

James C. Arena-DeRosa

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to tax abatement equity.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>James C. Arena-DeRosa</i>	<i>8th Middlesex</i>	<i>1/15/2025</i>

HOUSE No. 3965

By Representative Arena-DeRosa of Holliston, a petition (accompanied by bill, House, No. 3965) of James C. Arena-DeRosa relative to tax abatements. Revenue.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to tax abatement equity.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Section 64 of chapter 59 of the General Laws, as appearing in the 2022 Official Edition,
2 is hereby amended by adding the following paragraph:-

3 Notwithstanding any provision of this section or any other general or special law to the
4 contrary, a public utility, as defined in clause (q) of section 1 of chapter 40D, shall: (i) submit
5 their own proposed alternative assessment amount at the time of the appeal; (ii) immediately pay
6 the tax on the level of their own alternate proposed assessment; and (iii) be subject to a monetary
7 penalty of 25 per cent of what the public utility would owe if the appellate tax board deem the
8 public utility's appeal to be insufficient.